

statement that she was not the sole bidder by submitting an increased bid of \$390,000, which also was not accepted, and she alleges she suffered economic harm and “lost bidding rights.” (FAC ¶¶ 49-51.)

These allegations do not state a claim for fraud because the FAC does not plead a misrepresentation of fact that was false when made, nor does it allege facts showing Plaintiff took or refrained from taking any action in justifiable reliance that caused her damages in this case. The FAC does not explain what bidding rights were lost, or how any alleged misstatement caused that loss.

The fifth cause of action for negligent misrepresentation fares no better, Plaintiff’s theory appears to be that during a two-day SB 1079 bidding period she submitted an SB 1079 bid of \$356,500 and “strongly maintain[s]” she was the highest bidder because Defendants did not identify any higher SB 1079 bid. She alleges that on January 1, 2025, she followed up by email asking for a response and next steps. She then alleges that, based on the parties’ “conduct, actions and circumstances,” an implied-in-fact contract was formed “considering SB 1079 and AB 1837.” Finally, she alleges Defendants “in the form of concealment” negligently failed to respond, and that she “relied” on that concealment by believing she was the winning bidder and would proceed toward the sale process. (FAC ¶¶ 52-57.) As with the fraud cause of action, Plaintiff does not allege sufficient facts showing she did or refrained from doing something because of a false statement (or a duty-based nondisclosure), and that this reliance caused her damages in this case.

The demurrer to the fourth and fifth causes of action is sustained with leave to amend for Plaintiff to plead facts supporting each element of her misrepresentation claims.

The Sixth Through Ninth Causes of Action

The sixth through ninth causes of action for declaratory relief, UCL violation, injunctive relief, and the purported cause of action for “damages” are derivative of the substantive claims. Accordingly, because the Court sustains the demurrer with leave to amend as to the underlying causes of action, the demurrer is also sustained with leave to amend as to these derivative causes of action.

Motion to Strike

The Court, upon a party’s motion or upon its own, is authorized to “strike out any irrelevant, false, or improper matter inserted in any pleading” and to “strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. §436(a)-(b).)

Defendants move to strike any references to “Williams and Williams Real Estate Auction” and replace such references with “Williams and Williams Marketing Services Inc.” They also move to strike references to “Kelsy Fasig” and “Kelse Fasig” and replace them with “Kelsey Fasig,” and to strike references to “Barrett Daffin Frappier Treder & Weiss LLP” and replace them with “Barrett Daffin Frappier Treder & Engel, LLP.” (See Notice of Motion to Strike filed 11/10/25.)

The motion to strike is moot in light of the Court’s order sustaining the demurrer. However, Plaintiff should refer to the Defendants correctly and consistently in any amended pleading she files.

6. 9:00 AM CASE NUMBER: C25-00312
CASE NAME: LISA ROSS VS. WILLIAM & WILLIAM REAL ESTATE AUCTION
*HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT
FILED BY: FASIG, KELSEY
TENTATIVE RULING:

See Line 5.

7. 9:00 AM CASE NUMBER: C25-00641
CASE NAME: CYNTHIA NICKERSON VS. EPIC GAMES, INC.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: EPIC GAMES, INC.
TENTATIVE RULING:

APPEARANCE REQUIRED BY COUNSEL REPRESENTING EACH PARTY – May appear remotely via ZOOM.

Counsel shall be prepared to inform this Court of **status** of the JCCP Coordination Proceedings, whether jurisdiction of all matters in this case lies with that Court or whether this Court retains jurisdiction over the present motion.

8. 9:00 AM CASE NUMBER: C25-01177
CASE NAME: NEDA VALIASHRAFI VS. MANSOUR AZIZI
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: VALIASHRAFI, NEDA
TENTATIVE RULING:

The Demurrer to the Cross Complaint is SUSTAINED, for the reasons set forth in the Demurrer, as to the First, Second, Fourth, and Fifth, causes of action, **with 14 days leave TO AMEND each** of those causes of action of the Cross Complaint.

The Sixth, Seventh and Eighth Causes of Action titled “harrassment” “use of Fictitious names” and “Harrassment and Threats,” respectively, are not valid recognized causes of action under California law and are not separate causes of action. The Sixth, Seventh and Eight Causes of Action do not state causes of action and are, therefore **sustained WITHOUT LEAVE TO AMEND**, as pled. The conduct alleged, however, may be included/subsumed by other valid causes of action as damages or explanatory of conduct contained in other causes of action.

9. 9:00 AM CASE NUMBER: C25-02220
CASE NAME: MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. VS. NANCY YEE
*HEARING ON MOTION IN RE: RECONSIDERATION
FILED BY: YEE, NANCY NGUYEN
TENTATIVE RULING:

Introduction

Before the Court is Defendant’s Nancy Nguyen Yee and Robert Frank Yee’s (Defendants) for